

The Garo Hills District (Administration of Town Committees) Act, 1956

Source: <https://indiankanoon.org/doc/198966184/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

State of Meghalaya - Act

The Garo Hills District (Administration of Town Committees) Act, 1956

MEGHALAYA

India

The Garo Hills District (Administration of Town Committees) Act, 1956

Act 1 of 1957

Published on 26 April 1957

Commenced on 26 April 1957

[This is the version of this document from 26 April 1957.]

[Note: The original publication document is not available and this content could not be verified.]

The Garo Hills District (Administration of Town Committees) Act, 1956

Act

No. 1 of 1957

Last Updated 19th February, 2020

[Received the assent of the Governor of Assam on the 26th April, 1957].

Published in the Assam Gazette, dated the 15th May, 1957.

An Act to provide for the establishment and administration of Town Committees in the Garo Hills Autonomous District
Preamble. Whereas it is expedient to provide for the establishment of Town Committees in the Garo Hills Autonomous District;

It is hereby enacted in the Seventh Year of the Republic of India as follows:

1.

Short title, extent and commencement.

(1)
This Act may be called the Garo Hills District (Administration of Town Committees) Act, 1956.

(2)
It extends to the whole of the Garo Hills Autonomous District.

(3)
It shall come into force at once.

2.
Definitions.

- In this Act unless there is anything repugnant in the subject or context-

(a)
"District" means the Garo Hills Autonomous District;

(b)
"District Council" means the District Council of the Garo Hills Autonomous District;

(c)
"Executive Committee" means the Executive Committee of the Garo Hills District Council constituted under the Assam Autonomous Districts (Constitution of District Councils) Rules, 1951.

3.
Constitution of notified areas.

(1)
The Executive Committee of the District Council may by notification published in the official Gazette signify its intention to constitute a Town Committee for any specified area wherein it considers improved arrangements are necessary to deal with all or any of the matters referred to in the Schedule appended to this Act.

(2)
A copy of the notification under sub-section (1) shall be published in such places as the Executive Committee may be general or special order direct.

(3)
Should any inhabitant of the notified area aforesaid desire to object to the notification issued under sub-section (1), he may, within six weeks from the date of its publication submit his objection in writing to the Executive Committee and the Executive Committee shall take his objection into consideration.

(4)
When six weeks from the date of publication have expired, and the Executive Committee has considered and passed orders on such objections as may have been submitted to it, the Executive Committee may by notification in the Assam Gazette, declare the specified area aforesaid or any portion thereof to be a notified area.

(5)
The Executive Committee may by notification declare that any area previously notified under sub-section (4) shall cease to be a notified area.

4.
Constitution of Town Committees.

(1)
There shall be established for each notified area a Committee, for the purposes of sub-section (3) of Section 5, consisting of such number of members to be appointed or elected on the basis of adult suffrage or partly so appointed and partly so elected as the Executive Committee may be notification direct.

(2)
Subject to the approval of the Governor of Assam, the Executive Committee may make rules for the appointment and election of members to such a Committee and the conduct of such election.

(3)
A Committee established under sub-section (1) of this section shall be called a Town Committee, and every such Town Committee shall have a Chairman and a Vice-Chairman.

(4)
The Executive Committee may appoint any person whether a member of the Town Committee or not, to be its Chairman

or Vice- Chairman or may authorise any Town Committee to elect its Chairman or Vice-Chairman or both and fix the terms of their office.

(5)

The Provisional Tura Town Committee constituted under the Rules with the Government of Assam Notification No. GDC-T/1/53/10, dated the 30th July, 1953, shall be deemed to have been established under the provisions of this Act.

5.

Powers of the District Council to impose taxed and regulate expenditure of proceeds thereof and make rules.

(1)

The District Council may, subject to the provisions of this Act and the rules made thereunder impose in any notified area the following taxes, fees and tolls or any of them :

(a)

a general tax, payable by the owner, on lands and buildings situated within the area;

(b)

a fee, payable by the owner, on a private market for the maintenance of sanitation thereof;

(c)

a tax on the entry of goods into a market within the area for the sale therein;

(d)

tolls on persons resident within the area;

(e)

a tax for the maintenance of School or Dispensary within the area;

(f)

a fee for conducting anti-malaria services or any other scheme of social service for the improvement of public health and sanitation in the area;

(g)

a licence fees on carriages and animals used for riding, driving or burden;

(h)

a fee on the registration of carts;

(i)

a fee on boats including steam boats and other vessels mooring within the area;

(j)

tolls on bridges and metalled roads constructed and maintained by the Town Committee within the area.

(2)

The general tax on lands and buildings mentioned in Clause (a) of sub-section (1) shall be fixed in such manner as may be prescribed by Rules by the Executive Committee taking into consideration all the amenities including water, lighting, latrine and drainage provided therefor.

(3)

The Executive Committee may, by rules, prescribe the arrangements-

(i)

for the assessment and recovery of any taxes, fees and tolls imposed under sub-section (1);

(ii)

for the due expenditure of the proceeds of taxes, fees and tolls imposed under sub-section (1) or any other funds which may be placed at the disposal of the Town Committee for any general or special purposes of the notified area and for the preparation and maintenance of proper accounts thereof.

6.

Application of funds of area ceasing to be notified.

- If any area previously notified ceases to be a notified area, the unexpected proceeds of any taxes levied therein under Section 5 shall be utilised for the benefit of the inhabitants of such area in such manner as the Executive Committee may deem fit.

7.

Power to make rules.

- The Executive Committee may make rules not inconsistent with the provisions of the Act for carrying out the purposes

of this Act and rules so made shall come into force immediately on their publication in the Assam Gazette.

Schedule

1. Payment of the expenses of paupers, lunatics, and lepers who are inhabitants of the Town Committee and are sent to the public asylums from the Town Committee.
 2. Constructions, maintenance, repair, improvement and cleaning of roads, bridges, squares, gardens, tanks, ghats, wells, channels, drains, latrines and urinals.
 3. Planting, reservation and felling of trees and bamboos.
 4. Supply of water and the lighting and watering of roads.
 5. Election and maintenance of Town Halls, offices and other buildings required for the purposes of the Town Committee.
 6. Establishment and maintenance of Primary Schools and of hostels to be used in connection with such schools.
 7. Establishment and maintenance of a Town Committee market or the taking of a market on lease.
 8.
Establishment and maintenance of Hospitals and dispensaries.
 9.
Promoting of free vaccination.
 10.
Acquiring and keeping of open spaces for the promotion of Physical exercise and recreation.
 11.
Establishment and maintenance of Veterinary dispensaries for the reception and treatment of horses, cattle and other animals.
 12.
Establishment and maintenance of the free public libraries and reading rooms.
 13.
Maintenance of the fire brigade.
 14.
Provisions of burial and burning grounds.
 15.
Taking of a census other than a Union Census.
 16.
Holding of fairs and industrial exhibitions.
 17.
Destruction of noxious animals or diseased or unclaimed eggs.
 18.
Establishment and maintenance of grazing grounds for cattle.
- Related AI tags, queries and research notes
- Translation